

25STCP05034 25STCP05034

County: los-angeles

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Case Number: 25STCP05034 Hearing Date: August 20, 2026 Dept: 834

Superior Court of California

County of Los Angeles

Department 834

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CITY OF LOS ANGELES,

Petitioner(s),

vs.

THE

STATE OF CALIFORNIA OCCUPATIONAL SAFETY AND HEALTH APPEALS BOARD,

Respondent(s).

Case No.:

25STCP05034

Hearing Date:

August 20, 2026

[TENTATIVE] RULING

ON PETITION FOR WRIT OF MANDATE

Petitioners City of Los Angeles ("City") and Los Angeles Police Department ("LAPD") (collectively, "Petitioner") petition for a writ of mandate against respondent California Occupational Safety and Health Appeals Board ("Respondent" or "OSHAB") directing it to set aside its decision denying Petitioner's petition for reconsideration.

The petition for writ of mandate is denied.

I.

Background

1.

Factual Background

On November 23, 2022, real party California Department of Industrial Relations, Division of Occupational Safety and Health ("RPI") issued three Citation and Notification of Penalty documents, collectively under Inspection No. 1599318 ("Citations"), to the LAPD relating to a training accident at an LAPD facility. (AR 11-18.)

Petitioner asserts that on December 27, 2022, LAPD submitted an OSHAB Appeal Form on which it indicated a preference for service by mail. (See AR 70-72.) Respondent and RPI each contend that Respondent received an OSHAB Appeal Form on December 30, 2022, dated December 28, 2022, indicating LAPD's preference for e-mail service. (AR 7-10.) RPI also contends that Respondent received an amended OSHAB Appeal Form on January 3, 2023 indicating preference for e-mail service. (AR 18-28.)

On April 14, 2025, Respondent scheduled a status conference for the Citation appeal to be held on September 2, 2025. (AR 53-56.) Respondent sent notice by e-mail only. (AR 53-57.) Petitioner did not appear at the September 2, 2025 status conference.

On September 12, 2025, Administrative Law Judge Rhee Yoo Avelar ("ALJ") issued an Order Dismissing Appeal for Failure to Appear because Petitioner missed the September 2, 2025 noticed status conference and a prior noticed status conference on February 26,

2024. (AR 59-69.)

On October 6, 2025, Petitioner filed a Petition for Reconsideration with the Board (AR 63-64) which Respondent denied on November 20, 2025 (AR 101-04).

2.

Procedural History

On December 30, 2025, Petitioner filed the petition. Proofs of service filed December 31, 2025 show Petitioner served the summons and complaint on Respondent by substituted service on January 19, 2026. On January 2, 2026, Respondent filed its answer to the petition. On January 6, 2026, the RPI filed its answer.

On May 26, 2026, Petitioner filed its opening brief. On July 10, 2026, Respondent filed its opposition. On July 13, 2026, RPI filed its opposition. On July 28, 2026, Petitioner filed its reply.

II.

Standard of Review

Code of Civil Procedure (“CCP”) section 1094.5 is the administrative mandamus provision that structures the procedure for judicial review of adjudicatory decisions rendered by administrative agencies. (*Topanga Ass’n for a Scenic Community v. County of Los Angeles* (1974) 11 Cal.3d 506, 514-15) [“*Topanga*”].) Section 1094.5 does not specify which cases are subject to independent review, leaving that issue to the courts. (*Fukuda v. City of Angels* (1999) 20 Cal.4th 805, 811.) In cases reviewing decisions that affect a vested, fundamental right, the trial court exercises independent judgment on the evidence. (*Bixby v. Pierno* (1971) 4 Cal.3d 130, 143 [“*Bixby*”]; see CCP § 1094.5(c).)

However, for appeals from Respondent under Labor Code section 6600, et seq., the legislature has prescribed the court’s standard of review. (*Nolte Sheet Metal, Inc. v. Occupational Safety & Health Appeals Bd.* (2020) 44 Cal.App.5th 437, 444-45 [“*Nolte Sheet Metal*”].) While the statute provides that “[t]he findings and conclusions of the appeals board on questions of fact are conclusive and final and are not subject to review,” [1] this

must be read together with the provision that “[t]he review by the court” includes whether “[t]he order or decision was not supported by substantial evidence.”[2] (See *LeVesque v. Workmen’s Comp. App. Bd.* (1970) 1 Cal.3d 627, fn. 19 [“LeVesque”] [interpreting identical provisions in Labor Code sections 5952 and 5953 for judicial review of decisions by the Workmen’s Compensation Appeals Board].) Furthermore, our Supreme Court has held that “the Legislature may accord finality to the findings of a statewide agency that are supported by substantial evidence on the record considered as a whole”. (*Tex-Cal Land Management, Inc. v. Agricultural Labor Relations Bd.* (1979) 24 Cal.3d 335, 346.)

For these reasons, the Court in *Nolte Sheet Metal* determined that Labor Code sections 6629 and 6630 constitute a legislative prescription of the substantial evidence standard of review already used in administrative mandamus actions not involving a vested fundamental right. (*Nolte Sheet Metal* at 444-45; See *LeVesque* at fn. 19.)

“Substantial evidence” is relevant evidence that a reasonable mind might accept as adequate to support a conclusion (*California Youth Authority v. State Personnel Board* (2002) 104 Cal.App.4th 575, 585 [“California Youth Authority”]) or evidence of ponderable legal significance, which is reasonable in nature, credible and of solid value (*Mohilef v. Janovici* (1996) 51 Cal.App.4th 267, 305, n. 28). Substantial evidence can be the opinion of a single expert (*Coastal Southwest Dev. Corp. v. Coastal Zone Conservation Comm’n* (1976) 55 Cal.App.3d 525, 532), or opinions in a staff report (*Griffin Dev. Co. v. City of Oxnard* (1985) 39 Cal.3d 256, 261).

The court considers all evidence in the administrative record, including evidence that detracts from evidence supporting the agency’s decision. (*California Youth Authority*, *supra*, 104 Cal.App.4th at p. 585.) The court must uphold the decision unless it concludes, based on the evidence before the agency, a reasonable person could not reach the conclusion reached by the administrative agency. (*Harris v. City of Costa Mesa* (1994) 25 Cal.App.4th 963, 969.) Where “reasonable persons may differ,” the courts will not disturb the judgment of the administrative agency. (*Breakzone Billiards v. City of Torrance* (2000) 81 Cal.App.4th 1205, 1246.) The court does not weigh evidence or decide who has the better argument and must resolve

reasonable doubts in favor of the findings and decision. (Topanga, supra, 11 Cal.3d at p. 514.)

An agency is presumed to have regularly performed its official duties (Evid. Code § 664), and the petitioner therefore has the burden of proof on mandamus. (Steele v. Los Angeles County Civil Service Commission (1958) 166 Cal.App.2d 129, 137.) “[T]he burden of proof falls upon the party attacking the administrative decision to demonstrate wherein the proceedings were unfair, in excess of jurisdiction or showed prejudicial abuse of discretion.” (Alford v. Pierno, (1972) 27 Cal.App.3d 682, 691 [“Alford”].)

III.

Analysis

Petitioner seeks a writ of administrative mandamus directing Respondent to set aside its denial of the petition for reconsideration, arguing that Respondent failed to serve Petitioner by mail, which Petitioner asserts was its indicated preferred method of service.

The dispute centers on different versions of the OSHAB Appeal form. Petitioner relies on forms it claims to have submitted showing a preference for mail service. (AR 70-72.) Respondent and RPI rely on forms in the administrative record, stamped as received by Respondent, showing Petitioner indicated a preference for e-mail service. (AR 7-10; see also AR 18-28.) The parties do not dispute that Petitioner ultimately failed to appear at the September 2, 2025 status conference, after which Respondent dismissed the appeal. (AR 59-69.) Petitioner sought reconsideration, attributing its failure to appear on Respondent's use of e-mail service rather than mail. (AR 63-64.) Respondent denied the request. (AR 101-104.)

Petitioner's argument rests on proving it submitted an OSHAB Appeal Form indicating a preference for mail service. Respondent found Petitioner submitted only forms indicating a preference for e-mail service. Under the substantial evidence standard prescribed by Labor Code sections 6629 and 6630, Petitioner bears the burden of showing Respondent's factual finding is unsupported by substantial evidence. (Nolte Sheet Metal, supra, 44 Cal.App.5th at 444-45; Alford, supra, 27 Cal.App.3d at 691.)

Typically, such a dispute is resolved by reviewing the administrative record. The same approach applies here. A court must uphold an administrative decision unless no reasonable person could reach the conclusion the agency reached based on the evidence before it. (*Harris v. City of Costa Mesa*, (1994) 25 Cal.App.4th 963, 969.) Where "reasonable persons may differ," the courts will not disturb the judgment of the administrative agency. (*Breakzone Billiards v. City of Torrance* (2000) 81 Cal.App.4th 1205, 1246.)

The only evidence showing Petitioner indicated a preference for mail service comes from Petitioner: forms attached to its petition for reconsideration and supporting declarations. (AR 70-72; 65; 83-34; 87.) [3] These documents do not bear any indicia that they were submitted to or received by Respondent. By contrast, the record includes OSHAB Appeal Forms stamped as received by Respondent. (AR 7-10.) These forms show that Petitioner indicated a preference for e-mail service. Petitioner did not move to augment the record, introduce extra-record evidence, or object to the inclusion of the stamped forms.

The issue is not whether Petitioner's post-hoc evidence is credible. Because the administrative record itself exists and is complete, neither Respondent nor the Court is required to decide credibility when the dispute concerns the contents of the record. The administrative record is "[t]he complete record of the proceedings" which "shall include the transcript of the proceedings, all pleadings, all notices and orders, any proposed decision by a hearing officer, the final decision, all admitted exhibits, all rejected exhibits in the possession of the local agency or its commission, board, officer, or agent, all written evidence, and any other papers in the case." (CCP § 1094.6(c).) That record contains the forms Respondent relies upon and does not contain the forms Petitioner claims it submitted. [4]

Given this record, the Court cannot conclude that no reasonable person could find Respondent received only the forms showing a preference for e-mail service. Petitioner therefore has not met its burden to establish that Respondent's decision lacked substantial evidence.

IV.

Conclusion

Petitioner has not met its burden to show Respondent's decision was not supported by substantial evidence. The petition for administrative mandamus is DENIED. Pursuant to Local Rule 3.231(n), respondent California Occupational Safety and Health Appeals Board shall prepare, serve, and ultimately file a proposed judgment.

Date: August 20, 2026

HON. TIANA J. MURILLO

PLEASE TAKE NOTICE:

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Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

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If

a party intends to submit on this tentative ruling, the party may send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

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Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

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If

the parties neither submit nor appear at hearing, the court may take the matter off calendar or adopt the tentative ruling as the order of the court. After the court has issued a tentative ruling, the court may prohibit the withdrawal of the matter without leave.

[1]

Lab. Code § 6630.

[2]

Lab. Code § 6629.

[3]

While Petitioner asserts that “both forms”—referring to the forms Petitioner claims to have submitted and the forms Respondent claims to have received—“have the same designation” of “postal mail service” (Pet. Op. Br. at 9, citing to AR 21-28, 70-72), Petitioner’s citations do not bear this out. The latter citation to the forms provided as an exhibit to Petitioner’s petition for reconsideration do indicate preference for mail service as Petitioner claims. (AR 70-72.) But the other cited forms, included as part of the Notice of Perfected Appeal, clearly designate e-mail service. (AR 21-26.) Petitioner also never accounts for why, even if it did submit initial forms requesting mail service, Respondent also subsequently received forms requesting e-mail service.

[4]

The Court notes that Petitioner provides a misleading assertion on this point. Petitioner states:

“The Board noted receiving the appeals forms by the City, but noting that forms were prepared using an outdated version of the Board’s appeal form (AR00102-AR00103).” (Pet. Op. Br. at 9.)

At the cited pages, Respondent expressly states that Petitioner’s purported submissions were “never received” and that “the sole appeal form received” reflected preference for e-mail service. (AR 102-03.) Respondent only notes receiving the mail service forms as part of Petitioner’s petition for reconsideration. (AR 102.)